

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF SUFFOLK-----X
DIANE C. DESOUSA and
THOMAS E. DESOUSA,

Index No.600371/2021

Plaintiffs,

REPLY AFFIRMATION

-against-

Justice Assigned:
Hon. Frank TinariRICHARD A. CALVAGNO II and
PATRICK J. KARCHER,

Motion #004

Defendants.
-----X

1. John N. Cuomo, an attorney duly licensed to practice law in the State of New York, affirms under penalties of perjury as follows:

2. I represent plaintiffs Diane C. DeSousa (“Mrs. DeSousa”) and Thomas E. DeSousa (“Mr. DeSousa”) (Mrs. DeSousa and Mr. DeSousa collectively “Plaintiffs”) in the above-entitled action.

3. As such I am fully familiar with the facts and circumstances of the case, and I make the following statements based upon my personal knowledge, information, and belief.

4. I submit this Reply Affirmation responding to defendant Richard A. Calvagno II’s (“Calvagno”) opposition to Plaintiffs’ motion for summary judgment (now marked as “for dismissal”) dismissing Calvagno’s First through Fifth Counterclaims (see [NYSCEF#79-82](#))¹.

5. At the outset, Calvagno’s accompanying affidavit conclusively demonstrates and reinforces Plaintiffs’ earlier claim that he has intentionally and repeatedly lied to this Court “about issues central to the truth finding process” (see, *CDR Creances S.A.S. v. Cohen*, 23 N.Y.3d 307 (2014)). When called out on his perjurious conduct, Calvagno now claims it was “all a mistake”

¹ See CPLR§ 2214(c).

and is simply the victim of counsel's "attempt to twist the truth [of his] testimony" (NYSCEF#79). However, his claim of innocence is quickly dispelled by a review of his deposition transcript and the various *additional* lies he now puts forward again.

6. Furthermore, Calvagno's motion papers, the majority of which is riddled with conclusory statements and unnecessary recitations of case law, fails to put forth any admissible evidence establishing a factual dispute to defeat summary judgment (*see, Zuckerman v City of New York*, 49 NY2d 557 (1980) [to defeat a motion for summary judgment the opposing party must "show facts sufficient to require a trial of any issue of fact...by producing evidentiary proof in admissible form"])). Where Plaintiffs' papers are supported by substantial testimonial and documentary evidence, Calvagno provides no such support for any of his claims. Calvagno's opposition is predicated entirely on false cries of homophobia, lies and misrepresentations of the evidence produced in this case.

7. For all the following reasons, Calvagno's opposition to Plaintiff's motion for summary judgment is unsupported by evidence, fails to raise a material issue of fact, and therefore, should be denied in its entirety.

ARGUMENT

I. Calvagno's Affidavit Conclusively Establishes He Committed a Fraud on the Court Warranting Dismissal and Entry of Judgment in Favor of Plaintiff

8. "[W]hen a party lies to the court and [its] adversary intentionally, repeatedly, and about issues central to the truth-finding process, it can fairly be said that [the party] has forfeited [the] right to have [the] claim decided on the merits" (internal citations omitted). Therefore, "once a court concludes that clear and convincing evidence establishes fraud on the court, it may strike a pleading and enter a default judgment" (*CDR Creances S.A.S. v. Cohen*, 23 N.Y.3d 307, 321 (2014)). Calvagno's Affidavit reinforces the obvious fraud he has committed upon this Court and

shows his continued disregard for the integrity of this proceeding. This is one of the rare cases where sanctions in the form of striking pleadings and the entry of a default judgment in favor of the Plaintiff is warranted.

9. Plaintiffs previously established Calvagno lied under oath when he verified his counterclaims on January 26, 2021, attesting to the existence of facts that, by his own words, had not yet occurred (157-158; 167). After his perjurious conduct was exposed, he further undermines this proceeding by falsely swearing to new facts to conceal his earlier lies. First, Calvagno feigns ignorance to the “names” of legal papers, and frivolously asserts he believed the papers his “answers referred to” were the “complaints and papers” provided to him by “the police and other local officials,” not Plaintiff’s Complaint (NYSCEF#79). Calvagno does not provide the date he received these papers, nor does he attach any of the “complaints and papers” he was supposedly given to corroborate his claim. In fact, the earliest police report Mr. DeSousa filed against Calvagno was dated May 26, 2021, or *after the lawsuit*, directly exposing Calvagno’s untruthfulness (NYSCEF#68). Also, he does not identify who the “local officials” were that provided him with papers. Such a broad description can mean anyone, including the process server who served him with Plaintiff’s Complaint. Given his propensity for untruthfulness, this is the likeliest scenario.

10. Calvagno continues this lie by claiming he later learned that “counsel was referencing the service of the Summons and Complaint” and is seeking “to twist the truth [of his] testimony” (NYSCEF# 79 at 3). The falsity of this claim is easily identified by his deposition testimony. At page 157 of his deposition transcript (NYSCEF#67), the following exchanged occurred:

Q: The slurs that you claim Mr. DeSousa used with you in the street, sitting here today, you said it was two or three years ago?

Calvagno: Yes.

Q: It would be 2020, 2021?

Calvagno: When did the lawsuit start? How about that?

Q: The lawsuit started in 2021.

Calvagno: **After the lawsuit started.**

Q: After the lawsuit started?

Calvagno: **Yes.**

11. Later, in the same deposition, at page 167, Calvagno is again asked:

Q: Do you remember when [Mr. DeSousa yelled and shouted obscenities at you] occurred?

Calvagno: No.

Q: Prior to the lawsuit or after the lawsuit?

Calvagno: **Everything was after the lawsuit.** Prior to me being served the papers we never had any negative interactions. Any questions **were after this lawsuit.**

12. As demonstrated by his deposition testimony, Calvagno was not confused as he now contends. He was directly asked, on multiple occasions, when the incidents forming the basis of his counterclaims occurred and his response was *after* this lawsuit started in 2021. At no point in the deposition did Calvagno's counsel object to the question, nor did Calvagno ask for the question to be repeated or seek additional clarification. Now, months after the deposition, and his lies were exposed, Calvagno again claims to be the victim, but this time of a bait and switch that made him "confused."

13. Calvagno further states that it was "clear from [his] testimony that many of the papers and 'altercations' [the parties] exchanged, pre-dated the service of the Verified Complaint" (NYSCEF# 79 at 3). Calvagno avoids identifying when and where these "many" pre-suit

exchanges occurred. Even better, he states in a footnote that “in the 19 days between [service of the complaint and my answer], the Plaintiff and I exchanged MANY words, including *quite possibly*, allegations set forth in my counter-claims” (NYSCEF# 79 at 3). Thus, Calvagno is “sure” there were “many” incidents that occurred before he filed his counterclaims, he just can’t identify where, when, or what happened – the hallmark of a liar.

14. Calvagno also testified, under oath, that there were *no* witnesses nor any video evidence of Mr. DeSousa ever using offensive slurs like “faggot” or “homo” towards him (NYSCEF#73 at 153-154). Calvagno again contradicts his earlier sworn testimony, asserting, for the first time, that Plaintiffs supposedly “hate-filled” speech toward him was witnessed by his live-in boyfriend, parents, and other neighbors (NYSCEF#80). This is the first time he has identified a witness to these slurs since the case commenced. However, he fails to identify when these supposed statements were made and tellingly does not provide any affidavits or other evidence from his boyfriend, parents, or neighbors corroborating this claim. While he references Vincent Camarda’s deposition, Camarda testified he had “no idea” why Calvagno named him as a witness (NYSCEF#46 at 41-42). Camarda also did not have any knowledge of the purported “slurs” and other interactions between Plaintiffs and Calvagno.

15. Finally, the evidence *provided by Calvagno* undermines his newly asserted claim that his parents and other neighbors witnessed Plaintiffs’ offensive slurs. Calvagno testified at his deposition that Mr. DeSousa did not slander him to other neighbors, but merely presented them with a petition regarding this lawsuit (NYSCEF#67 at 155). The incident involving Calvagno’s parents was captured on video, which conclusively shows that Mr. DeSousa does not use offensive slurs against him. Importantly, it is what the video does not show that is devastating to all of Calvagno’s claims. At no point in the interaction with Mr. DeSousa do Calvagno’s parents make

any reference to the purported “hate-filled” statements made by Plaintiffs to their son. This directly establishes that Calvagno’s claims against Plaintiffs are nothing more than slander, requiring immediate sanctions.

16. Accordingly, this Court should impose significant sanctions in the form of striking all of Calvagno’s pleadings and enter default judgment in favor of Plaintiffs to protect the integrity of the judicial system and “to discourage the type of egregious and purposeful conduct designed to undermine the truth-seeking function of the courts” (*Id.*).

II. Legal Defects and Deficiencies of Plaintiff’s Motion Practice

11. Calvagno argues Plaintiffs’ motion (1) fails to annex the counterclaims or pleadings in violation of CPLR § 3212, (2) violates the 7,000-word limit under Court Rule 202.8-b, and (3) is unsupported by factual proof. He also renews his earlier claim that Plaintiff’s Complaint is fatally defective because it mistakenly identifies Plaintiffs as the owners of Calvagno’s residence.

12. At the outset, it is important to note that Calvagno continues to waste time and resources by continuing to convey blatantly frivolous arguments. Like his counterclaims, the foregoing arguments have no basis in fact or law and are easily dispelled by simply reading the applicable statutes and cases, even those he cites in his own papers.

13. With respect to Calvagno’s first contention, CPLR §2214(c) expressly states: “[e]xcept when the rules of the court provide otherwise, in an e-filed action, a party that files papers in connection with a motion *need not include copies of papers that were filed previously electronically with the court, but may make reference to them, giving the docket numbers on the e-filing system*” (emphasis added). In compliance with this rule, Plaintiffs’ papers reference Calvagno’s Answer with Counterclaims and identifies the applicable docket number on the e-filing system. Calvagno’s claim Plaintiffs failed to annex or refile a copy of the pleadings is therefore

entirely without merit.

14. Calvagno's claim that Plaintiffs' motion exceeds the 7,000 word limit in violation of Court Rule 202.8-b is equally without merit. The total word count, excluding the caption and signature block (see 202.b(b)) is 6895 words.

15. Calvagno further claims that Plaintiffs' attorney's affirmation is "unsupported by factual proof [and] void of probative value" citing *Zuckerman v City of New York*, 49 NY2d 557 (1980). In *Zuckerman*, the court reiterated that to prevail on a motion for summary judgment, the movant must "tender [] evidentiary proof in admissible form" (*Id*). In rejecting the "bare [attorney] affirmation," the court reasoned:

"[the attorney's affirmation] is speculation as to what would "doubtless" appear at the trial is patently inadequate to establish the existence of a factual issue requiring a trial as to the manner of operation of the transit authority's bus. The record contains no affidavit of plaintiff or of any eyewitness and no transcript of any examination before trial; no request was made for an adjournment of the motion to permit any such examination; no identification of the hypothetical "other witnesses to the occurrence", with an accompanying statement as to the substance of their testimony and explanation for failure to submit affidavits from them, was proffered."

(*Id* at 563).

16. Here, Plaintiffs' attorney's affirmation is supported by a copy of the pleadings and the sworn affidavits of Plaintiffs in compliance with CPLR § 3212(b); deposition transcripts of the parties and nonparties; as well as emails, police reports, photographs, and other admissible evidentiary proof. Calvagno's claims are therefore without merit.

17. Finally, Calvagno again conveys his frivolous claim that the complaint was defective because it mistakenly named Plaintiffs' as the owner of Calvagno's property. Calvagno erroneously relies on *Bischof v Gountas-Ortiz*, 59 Misc 3d 1225(A) (Sup Ct., Queens County 2018)

for this contention. In *Bischof*, plaintiffs commenced a nuisance action against defendants. In their motion to dismiss, defendants submitted a copy of the deed of plaintiff's residence showing a nonparty, not plaintiffs, in fact owned the property, resulting in dismissal of their private nuisance claim. *Bischof*, which involved the issue of standing, clearly has no bearing on the facts of this case as there is no dispute Calvagno is the owner of the premises.

18. For all the foregoing reasons, each of Calvagno's legal defect and deficiency arguments should be rejected in their entirety.

II. Remaining Contentions

A. First Counterclaim: Abuse of Process

19. Calvagno failed to come forward with evidentiary proof in admissible form establishing a triable issue of fact regarding his abuse of process claim. After sifting through a substantial string of case law recitations, Calvagno's argument boils down to two contentions—each of which must be rejected.

20. First, Calvagno argues that Plaintiffs' commenced this action "with the intent to harm the Defendant and terminate his lifestyle." While he alleges Plaintiffs slurred him in his presence "and the presence of others," he provides no evidence in support of these claims, including where and when these slurs occurred. He further fails to provide any evidentiary corroboration of these claims, including affidavits, or even, the name of these "other" witnesses. Regardless, commencement of an action, even with malicious intent, is insufficient to establish an abuse of process claim (*Curiano v. Suozzi*, 63 N.Y.2d 113 (1984)).

21. Calvagno also fails to establish the action was commenced "without excuse or justification" (*id.*). Calvagno claims he was "living civilly" and that neither the police nor town authorities acted on Plaintiffs' claims. Even though Calvagno's conduct violated several laws (see Section D, below), a violation of law is not required to prove a private nuisance (*Broxmeyer v.*

United Cap. Corp., 79 A.D.3d 780 (2d Dep’t 2010)). Finally, Calvagno fails to address the overwhelming evidence submitted by Plaintiffs justifying this suit, including the decibel readings, police reports and communications by nonparties, witness affidavits, photographs, among other evidence.

22. For all the foregoing reasons, Calvagno’s First Counterclaim must be dismissed.

B. Second Counterclaim: Intentional Tort

23. At the outset, Calvagno again fails to specifically identify the intentional tort and the necessary elements of this claim, thereby warranting dismissal. Notwithstanding, he reasserts his earlier, albeit fatal, position that this unknown tort resulted in the denial of Calvagno’s civil rights under the New York State Human Rights Law.

24. The New York Human Rights Law protects “the *opportunity to obtain...* the ownership, use and occupancy of housing accommodations” (N.Y. Exec. Law § 291). Therefore, it applies only to those who *provide* public or private housing accommodations, e.g. a landlord, real estate agent, etc. This statute is inapplicable to a dispute between neighbors. Even so, Calvagno failed to establish any discriminatory intent or that the Plaintiffs cause of action was made without justification.

25. Calvagno also asserts that Plaintiffs “hate-filled” speech toward him was witnessed by his live-in boyfriend, parents, and other neighbors as evidence precluding summary judgment on this claim. This not only contradicts his earlier testimony (NYSCEF#67 at 153-154) but he fails to produce any affidavits or other evidence from his boyfriend, parents, or neighbors corroborating this claim.

26. For all the foregoing reasons, Calvagno’s Second Counterclaim must be dismissed.

C. Third and Fourth Counterclaims: Malicious Prosecution and Private Nuisance

27. On his Third and Fourth Counterclaims, Calvagno does not even make an effort to address the merits of Plaintiffs' factual and legal arguments nor raise any material, triable issue of fact necessary to survive a motion for summary judgment. For all the reasons set forth herein and in Plaintiffs' motion for summary judgment, the Third and Fourth Counterclaims must be dismissed.

D. Fifth Counterclaim: Intentional Infliction of Emotional Distress

28. Calvagno admits that New York does not recognize a common law cause of action for harassment. He also does not contest Plaintiffs' claim that there is no cause of action for menacing or that he failed to establish a claim for assault. Calvagno's entire response appears limited to his claim for intentional infliction of emotional distress.

29. At the outset, Calvagno fails to submit medical evidence in support of his emotional distress claim. This is fatal and grounds for immediate dismissal (*Murphy v Murphy*, 109 AD2d 965 (3d Dept 1985); *Halio v Lurie*, 15 AD2d 62 (2d Dept 1961); and Restatement, Torts 2d, § 46).

30. Calvagno also failed to come forward with admissible evidence supporting his claims of "extreme and outrageous" conduct. The merits of Calvagno's allegations are addressed below.

- Plaintiffs "[r]elentlessly called the police and other authorities on Defendant (without citation or violation issued against him).

31. The evidence demonstrated that Mr. DeSousa contacted the police on only two occasions – May 26, 2021 and February 11, 2022. The filing of two police reports do not constitute "relentless" or extreme or outrageous conduct. More importantly, Mr. DeSousa contacted the police to report that Calvagno's vehicle "creates an unreasonable amount of noise," a violation of VTL §375(31)(a) and the Village of Amityville Code §114-3, and for speeding, another VTL violation. Calling the police to report a violation of the law is also not extreme or outrageous.

Furthermore, Calvagno's repeated claim that no citation was ever issued is directly contradicted by an independent witness, Elizabeth Ranker, who submitted an affidavit stating she was advised by police that "they had already ticketed him a few times" (see NYSCEF#100).

32. Ranker's Affidavit raises serious concerns that Calvagno failed to disclose these tickets, despite multiple requests made by Plaintiffs. Such failure, however, would not be surprising, as it is consistent with the fraud he has repeatedly committed upon this Court and throughout the action. The Court should take this fact under consideration when deciding Plaintiffs' request for sanctions.

- *Stalked, followed and harassed Defendant on the streets taunting him and trying to follow Defendant on his way to work;*

33. Calvagno testifies to only one incident where Mr. DeSousa purportedly followed him in his car, flashed his lights, and cursed at him. The claim Mr. DeSousa "followed and harassed" Calvagno comes entirely from Calvagno himself, a serial perjurer, without corroboration. It is inherently untrustworthy and must be rejected.

- *Notice to third parties with whom he works for deposition, thus and deliberately undermining his employment, status and business relationships with people who were forced to hire attorneys to appear at deposition that failed to prove that Defendant had modified his factory car (thus deemed within legal sound limits) and ability to work and earn a livelihood;*

34. This claim is entirely without merit. Calvagno used his client, Westbury Jeep, to prepare a letter certifying they had inspected his vehicle and that he did not modify the exhaust (NYSCEF#44). Of course, once these individuals were deposed about the inspection, and the inspection records were subpoenaed, it became apparent that the letter was the direct result of another fraud committed by Calvagno. Steve Garguilo, Westbury Jeep's Service Director, who signed the letter attesting to the fact that it was inspected, testified that he "did not know" if the car was inspected, as there is no record of the inspection ever taking place (NYSCEF#45 at 13-

17). William Wurster, the Shop Foreman at Westbury Jeep, also testified that they would *not* check exhausts or mufflers nor decibels during any inspection (NYSCEF#91 at 22-23). It is clear Westbury Jeep did not actually inspect his vehicle but simply prepared the letter on behalf of Cavalgno based on their longstanding and lucrative business relationship. Contrary to his self-serving denials otherwise, Calvagno has failed to offer any credible, admissible evidence that the vehicle was not modified.

35. For all the foregoing reasons, Calvagno failed to establish conduct that is “so outrageous in character, and so extreme in degree, as to go beyond all possible bounds of decency, and to be regarded as atrocious, and utterly intolerable in a civilized community” (*Murphy v. Am. Home Prod. Corp.*, 58 N.Y.2d 293, 303 (1983); *Marilyn S. v. Indep. Grp. Home Living Program, Inc.*, 73 A.D.3d 895, 897 (2d Dept 2010)).

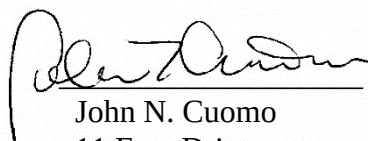
36. Accordingly, Calvagno’s Fifth Counterclaim must be dismissed.

CONCLUSION

For all the foregoing reasons, Calvagno’s opposition to Plaintiffs’ motion for summary judgment seeking to dismiss his counterclaims should be denied in its entirety.

Dated: Commack, New York
June 24, 2024

Yours, etc.,



John N. Cuomo
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Commack, NY 11725
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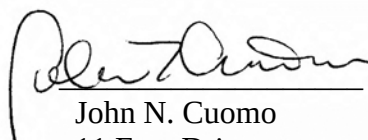
CERTIFICATION PURSUANT TO UNIFORM RULES 202.8-b

John N. Cuomo, an attorney duly admitted to practice law before the Courts of the State of New York, certifies that foregoing Affirmation was completed using a word processing system and that I have relied on that system's word count in preparing this certification and word count:

The total words, excluding those permitted to be excluded (caption, signature block) is 3,390.

Dated: Commack, New York
June 24, 2024

Yours, etc.,

A handwritten signature in black ink, appearing to read "John N. Cuomo", is written over a horizontal line.

John N. Cuomo
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